The Constitution was written in the eighteenth century, back when the only computers were abacuses, gear calculators, and looms, and it could take weeks or months for a communication to cross the ocean by ship. It stands to reason that computer files, whatever their contents, are our version of the Constitution's "papers." We certainly use them like "papers," particularly our word-processing documents and spreadsheets, our messages and histories of inquiry. Data, meanwhile, is our version of "effects," a catchall term for all the stuff that we own, produce, sell, and buy online. That includes, by default, metadata, which is the record of all the stuff that we own, produce, sell, and buy online—a perfect ledger of our private lives.

In the centuries since the original Constitution Day, our clouds, computers, and phones have become our homes, just as personal and intimate as our actual houses nowadays. If you don't agree, then answer me this: Would you rather let your coworkers hang out at your home alone for an hour, or let them spend even just ten minutes alone with your unlocked phone?

The NSA's surveillance programs, its domestic surveillance programs in particular, flouted the Fourth Amendment completely. The agency was essentially making a claim that the amendment's protections didn't apply to modern-day lives. The agency's internal policies neither regarded your data as your legally protected personal property, nor regarded their collection of that data as a "search" or "seizure." Instead, the NSA maintained that because you had already "shared" your phone records with a "third party"—your telephone service provider—you had forfeited any constitutional privacy interest you may once have had. And it insisted that "search" and "seizure" occurred only when its analysts, not its algorithms, actively queried what had already been automatically collected.

Had constitutional oversight mechanisms been functioning properly, this extremist interpretation of the Fourth Amendment—effectively holding that the very act of using modern technologies is tantamount to a surrender of your privacy rights—would have been rejected by Congress and the courts. America's Founders were skilled engineers of political power, particularly attuned to the perils posed by legal subterfuge and the temptations of the presidency toward exercising monarchical authority. To forestall such eventualities, they designed a system, laid out in the Constitution's first three articles, that established the US government in three coequal branches, each supposed to provide checks and balances to the others. But when it came to protecting the privacy of American citizens in the digital age, each of these branches failed in its own way, causing